

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
WILLIAM FONT and CHARLES JENKINS,

Plaintiff designates

Bronx County as the place of trial

Plaintiffs,

The basis of the venue is where the
tort arose

-against-

SUMMONS

THE CITY OF NEW YORK, individually and officially
in their capacities as New York City Police Officers,
DONALD SEHL and JOHN or JANE DOE 1-10,

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 30, 2019



SIM & DEPAOLA, LLP
BY: Samuel DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 201
Bayside, New York 11361
(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**P.O. DONALD SEHL OF NARCB BX.
SHIELD #1527, TAX ID #951232**

One Police Plaza, 11th Floor
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
WILLIAM FONT and CHARLES JENKINS,

Plaintiffs,

VERIFIED COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK, individually and officially in
their capacities as New York City Police Officers,
DONALD SEHL and JOHN or JANE DOE 1-10,Defendants.
-----X

Plaintiffs, William Font and Charles Jenkins, by their attorneys, Sim & DePaola, LLP, for
their complaint against the above Defendants, alleges as follows:

1. The claim arises from a March 7, 2018 incident in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Font and Mr. Jenkins. Mr. Font and Mr. Jenkins were subsequently prosecuted and charged with one (1) count of Criminal Possession of a Controlled Substance in the seventh degree and one (1) count of Unlawful Possession of Marijuana. As a result, Mr. Font and Mr. Jenkins were deprived of their liberty and suffered physical injuries. Mr. Font was wrongfully incarcerated for two (2) days or approximately thirty-five (35) hours, until Mr. Font was released on or about March 8, 2018 at about 4:00 p.m. Mr. Jenkins was wrongfully incarcerated for two (2) days or approximately thirty-nine (39) hours, until Mr. Jenkins was released on or about March 8, 2018 at about 8:30 p.m. The criminal prosecutions against Mr. Font and Mr. Jenkins were favorably terminated when all charges were dismissed on April 16, 2018.

2. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff William Font ("Mr. Font") resides in 532 E. 148th Street, County of Bronx, State of New York.
4. Plaintiff Charles Jenkins ("Mr. Jenkins") resides in 2060 White Plains Road, Apt. 516, County of Bronx, State of New York.
5. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
6. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
7. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
8. Defendant Police Officer Donald Sehl ("Sehl") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Sehl was, at the

time relevant herein, a Police Officer of NARCB BX, located at One Police Plaza, 11th Floor, New York, New York 10038. Defendant Sehl is sued in his individual and official capacities.

9. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.
10. At all times relevant herein, Defendants John and Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1-10 are sued in their individual and official capacities.
11. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiffs timely filed written notices of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. Plaintiffs have complied with municipal defendant's request for oral examinations pursuant to Section 50-H of the New York General Municipal Law.
15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On or about March 7, 2018 at approximately 5:25 A.M., Mr. Font and Mr. Jenkins were inside of 400 East 147th Street, Apartment 4C, County of Bronx, State of New York.
17. On said date Mr. Font was an invited guest of a relative of the resident of 400 East 147th Street, Apartment 4C, County of Bronx, State of New York.
18. On said date, Mr. Jenkins was also a visiting guest and went to sleep in the living room of his friend's apartment located at 400 East 147th Street, Apartment 4C, County of Bronx, State of New York.
19. Mr. Font was playing games with his friend and Mr. Jenkins was sleeping in the living room of said apartment when defendants, including Sehl, illegally entered said location without presenting a search warrant or a legal reason to do so.
20. Defendants, including Sehl, illegally entered said location with their guns drawn.
21. Defendants, including Sehl, violently grabbed and slammed Mr. Font on the ground, and rear handcuffed him.
22. Then Defendants, including Sehl, picked up Mr. Font and pushed him on a chair.
23. Then Defendants, including Sehl, illegally searched Mr. Font even though there was no probable cause to do so.
24. Mr. Jenkins was awoken by Defendants, including Sehl, who pointed a gun on his face when he was sleeping in the couch.
25. Mr. Jenkins was frightened and rolled over to the floor.
26. Then Defendants, including Sehl, lifted Mr. Jenkins up and illegally placed handcuffs on him.

27. Then Defendants, including Sehl, illegally searched Mr. Jenkins even though there was no probable cause to do so.
28. Defendants, including Sehl, then illegally searched said location without a legal reason to do so.
29. Defendants, including Sehl, falsely alleged that heroin, crack/cocaine and marihuana were in the custody and control of Mr. Font and Mr. Jenkins, when they knew such claims to be untrue and complete fabrications.
30. Mr. Font and Mr. Jenkins assert that while they were present in said location, they had ample opportunity to observe, and did observe, the locations where defendants, including Sehl, claimed to have observed said contraband.
31. Mr. Font and Mr. Jenkins further assert that no contraband was in their custody and control, where defendants, including Sehl, claimed to have observed it.
32. Mr. Font and Mr. Jenkins, therefore, assert that defendant Sehl's allegation that contraband was observed to be in plain view within the same room as plaintiffs is a complete fabrication and falsehood.
33. As a result of defendants', including Sehl's, knowingly and intentionally false statements and allegations, Mr. Font and Mr. Jenkins were falsely arrested under arrest number B18611373 and arrest number B18611375.
34. Defendant Sehl was Mr. Font and Mr. Jenkins' arresting officer.
35. Defendant Sehl falsely arrested Plaintiffs claiming they were in criminal possession of heroin, marijuana and crack/cocaine that they found in the living room of said location.

36. Defendant Sehl was fully aware that no contraband was in plaintiffs' custody and control, but knowingly and intentionally chose to state contraband was in plaintiffs' custody and control to justify and excuse otherwise invalid arrests.
37. Mr. Font and Mr. Jenkins were never in actual, constructive or statutory possession of any contraband.
38. Mr. Font and Mr. Jenkins had multiple assaults and batteries committed to their persons, including but not limited to being placed in handcuffs too tight.
39. Mr. Jenkins was subjected to an illegal strip search with a cavity inspection at the police precinct.
40. Mr. Font was subjected to an offensive search at the police precinct.
41. Plaintiffs did not commit any crimes or violations of the law, including the possession of any illicit or controlled substances as alleged by defendants, including Sehl.
42. Defendants, including Sehl, intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Font and Mr. Jenkins, namely that contraband was in plaintiffs' custody and control.
43. Defendant Sehl was Mr. Font and Mr. Jenkins' arresting officer and signed his criminal court complaint, knowingly and falsely accusing Mr. Font and Mr. Jenkins of Criminal Possession of a Controlled Substance in the seventh degree and other related charges, all of which defendant Sehl knew to be false.
44. Mr. Font and Mr. Jenkins were arraigned and formally charged with one (1) count of Criminal Possession of a Controlled Substance in the seventh degree and one (1) count of Unlawful Possession of Marijuana.

45. At no point did the Defendants, including Sehl, ever observe Mr. Font and Mr.

Jenkins commit any crime or offense.

46. At no point were the defendants, including Sehl, ever told by any witnesses that Mr.

Font and Mr. Jenkins committed any crime or violation of the law.

47. Mr. Font was released from custody on or about March 8, 2018, at approximately

4:00 p.m.

48. Mr. Jenkins was released from custody on or about March 8, 2018, at

approximately 8:30 p.m.

49. The defendants, including Sehl, had no probable cause or reasonable suspicion to

arrest or detain Mr. Font and Mr. Jenkins.

50. Defendants, including Sehl, never possessed probable cause to believe a prosecution

would succeed against Plaintiffs, or that Plaintiffs were guilty of any crimes.

51. While Plaintiffs were unlawfully detained, Defendants, including Sehl, acting with

malice, conveyed the aforementioned false, misleading and incomplete information to

prosecutors in order to have Plaintiffs prosecuted for Criminal Possession of a

Controlled Substance in the seventh degree and other related charges.

52. Defendants, including Sehl, intentionally, knowingly and falsely made said

allegations to conceal their otherwise illegal, tortious and sinister acts, namely

entering a residence illegally without presenting a search warrant, arresting multiple

individuals without probable cause due to no contraband being in plaintiffs' custody

and control.

53. Defendants, including Sehl, falsely accused, arrested and maliciously prosecuted

plaintiffs for the purposes of exerting pressure on defendants' true targets and

- suspects, obtaining additional arrest credits, and being assigned to work overtime with an increased compensation rate.
54. Defendants, including Sehl, suppressed evidence and engaged in conduct undertaken in bad faith.
55. Defendants have displayed a pattern and practice of falsely alleging contraband to be in plaintiffs' custody and control to justify otherwise illegal arrests.
56. Defendants have displayed a pattern and practice of falsely arresting individuals present inside of locations where no contraband is observed in plaintiffs' custody and control and where the arrestees do not reside.
57. Mr. Font was wrongfully incarcerated for two (2) days or approximately thirty-five (35) hours, until Mr. Font was released on or about March 8, 2018 at about 4:00 p.m. Mr. Jenkins was wrongfully incarcerated for two (2) days or approximately thirty-nine (39) hours, until Mr. Jenkins was released on or about March 8, 2018 at about 8:30 p.m.
58. Mr. Font and Mr. Jenkins were forced to return to court to fight the false charges levied against them, until all charges were favorably terminated and dismissed on April 16, 2018.
59. During all of the events described, the Defendants, including Sehl, acted maliciously and with intent to injure Plaintiffs Mr. Font and Mr. Jenkins.
60. At all times relevant hereto, Defendants, including Sehl, were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause.

61. At all times relevant hereto, Defendants, including Sehl, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiffs' criminal prosecution.
62. As a direct and proximate result of the acts of Sehl, Plaintiffs suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

63. The above paragraphs are here incorporated by reference as though fully set forth.
64. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.
65. Plaintiffs were conscious of their confinement.
66. Plaintiffs did not consent to their confinement.
67. Plaintiffs' arrest and false imprisonment was not otherwise privileged.
68. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
69. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

70. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

71. The above paragraphs are here incorporated by reference as though fully set forth.

72. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

73. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

74. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

75. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

76. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

77. The above paragraphs are here incorporated by reference as though fully set forth.

78. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

79. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.

80. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

81. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

82. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

83. The above paragraphs are here incorporated by reference as though fully set forth.

84. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

85. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.

86. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

87. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

88. The above paragraphs are here incorporated by reference as though fully set forth.

89. Defendants initiated the prosecution against Plaintiffs.

90. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.
91. Defendants acted with malice.
92. The prosecution was terminated in Plaintiffs' favor when all criminal charges were dismissed and sealed.
93. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
94. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
95. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

96. The above paragraphs are here incorporated by reference as though fully set forth.
97. Defendants initiated the prosecution against Plaintiffs.
98. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.
99. Defendants acted with malice.
100. The prosecution was terminated in Plaintiffs' favor when all criminal charges were dismissed and sealed.
101. Accordingly, Defendants violated Plaintiffs' Fourth Amendment rights.
102. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

103. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

104. The above paragraphs are here incorporated by reference as though fully set forth.

105. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

106. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

108. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

109. The above paragraphs are here incorporated by reference as though fully set forth.

110. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to

prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

111. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

112. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

113. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

114. The above paragraphs are here incorporated by reference as though fully set forth.

115. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to prevent the termination of their employment due to their unlawful acts.

116. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

117. Defendants intended to inflict substantial harm upon Plaintiffs.

118. Defendants acts were in the furtherance of their own self-interests and committed so that defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.

119. Defendants abused the legal process to conceal their unlawful acts against Plaintiffs and receive credit for an otherwise invalid and illegal arrest.
120. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
121. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
122. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

123. The above paragraphs are here incorporated by reference as though fully set forth.
124. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to prevent the termination of their employment due to their unlawful acts.
125. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
126. Defendants intended to inflict substantial harm upon Plaintiffs.
127. Defendants acts were in the furtherance of their own self-interests and committed so that defendants would avoid termination and any other negative consequences that would have rightfully resulted from their illegal acts.

128. Defendants abused the legal process to conceal their unlawful acts against Plaintiffs and receive credit for an otherwise invalid and illegal arrest.
129. Defendants' actions deprived Plaintiffs of their rights to free from illegal searches and seizures, as well as their rights not to be deprived of their liberty without due process of law.
130. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
131. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision Under
New York State Law

132. The above paragraphs are here incorporated by reference as though fully set forth.
133. Defendant City owed a duty of care to Plaintiffs to adequately hire, retain and supervise its employee defendants.
134. Defendant City breached that duty of care.
135. Defendant City placed defendants in a position where they could inflict foreseeable harm.
136. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

137. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.

138. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

139. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELVTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

140. Plaintiffs re-allege and re-aver Paragraphs 1 through 139 of this Complaint as if fully set forth herein.

141. Defendant City maintained a policy, custom or practice that caused Plaintiffs to be deprived of their Constitutional right to free from illegal searches and seizures.

142. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

143. Defendant City’s policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who come into contact with Defendant City’s employees.

144. Defendant City’s conduct violated Plaintiffs’ rights under the Fourth and Fourteenth Amendments to the United States Constitution.

145. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

o) Together with the costs and disbursements of this action

Dated: Bayside, New York
May 30, 2019



SIM & DEPAOLA, LLP
By: Samuel C. DePaola
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Bayside, NY 11361
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ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
May 30, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

WILLIAM FONT and CHARLES JENKINS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, individually and officially in their capacities as New York City
Police Officers, DONALD SEHL and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard, Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for